

Andhra Pradesh Municipalities (Publication of Notification for purposes for which places may not be used without a Licence) Rules, 1967

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State of Andhra Pradesh - Act

Andhra Pradesh Municipalities (Publication of Notification for purposes for which places may not be used without a Licence) Rules, 1967

ANDHRA PRADESH

India

Andhra Pradesh Municipalities (Publication of Notification for purposes for which places may not be used without a Licence) Rules, 1967

Rule

ANDHRA-PRADESH-MUNICIPALITIES-PUBLICATION-OF-NOTIFICATION-FOR-PURPOSES-FOR-WHICH-PLACES-MAY-NOT-BE-USED-WITHOUT-A-LICENCE-RULES-1967 of 1967

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Andhra Pradesh Municipalities (Publication of Notification for purposes for which places may not be used without a Licence) Rules, 1967

In exercise of the powers conferred by Clause (a) of sub-section (2) of Section 326 read with sub-section (1) of Section

263 of the Andhra Pradesh Municipalities Act, 1965 (Act 6 of 1965), the Governor of Andhra Pradesh hereby makes the following rules relating to the manner of publication of notification under Section 263, the same having been published at pages 389-394 of Rules Supplement to Part 1 of the Andhra Pradesh Gazette, dated the 3rd September, 1966 as required by Clauses (a) and (b) of sub-section 237 of the said Act.

1.

These rules may be called the Andhra Pradesh Municipalities (Publication of Notification for purposes for which places may not be used without a Licence) Rules, 1967.

2.

When the Municipal Council determines that no place within municipal limits or within 3 kilometers of such limits shall be used for any one or more of the purposes specified in Schedule IV to the A.P. Municipalities Act, 1965 without a licence of the Commissioner, the Commissioner shall forthwith publish a notification in the form annexed to those rules.

3.

Every notification referred to in Rule 2 shall be published-

(a)

in the District Gazette and , if there is no District Gazette, in the Andhra Pradesh Gazette;

(b)

by affixing a copy of notification on the notice board of the municipal office:

(c)

by beat of drum both in municipal limits and outside the municipal limits where this notification is to become operative; and

(d)

through announcement by wire broadcasting system wherever such system is in operation.

Annexure 1

Form of Notification to be published under Section 63 of the Andhra Pradesh Municipalities Act, 1965

Form of Notification to be published under Section 63 of the Andhra Pradesh Municipalities Act, 1965

In pursuance of the provisions in Section 263 of the Andhra Pradesh Municipalities Act, 1965 (Act 6 of 1965) (hereinafter called the Act), the Municipal Council in its resolution No..... dated resolved that no place within the municipal limits of Municipality or at a distance of three kilometres of such limits shall be used for the purpose/purposes mentioned in the following. Table without the licence of the Commissioner and except in accordance with the conditions specified therein, the same is hereby published for general information. The sanctions of Government required under Section 263 (1)(b) for giving effect to the notification in areas outside the municipal limits was obtained in G.O.Ms.No..... dated

2. This notification will take after 60 days from the date of its publication. The owner or occupier or every such place, shall, within 30 days of the publication of this notification, apply to the Commissioner for a licence for the use of such place for such purpose.

3. In pursuance of the said resolution, a licence fee as indicated against each item in the following table is chargeable for the grant of each licence:

Provided that if a place is used for more purposes than one, it will be sufficient if the highest rate of fee chargeable for any of the trades taken individually has been paid.

Sl. No.

Nature of trade

Licence fee chargeable

(1)

(2)

(3)

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